

TERMS OF USE FOR SERVICES FRANCE SURGERY / IRIS

1. PURPOSE

These Terms of Use (hereinafter referred to as "TOU") aim to define (i) the conditions for using the France SURGERY Services and (ii) the rights and obligations of France SURGERY and the User.

The Iris Platform offers the User the possibility, in particular, to use the Coordination Service for (i) remote preventive consultations; (ii) Second Medical Opinion; (iii) preventive care pathways and/or (iv) hospitalization support.

The Services are provided to the User free of charge. However, the User acknowledges that the Iris Platform refers to medical procedures or care provided by a healthcare professional as part of a medical consultation and/or medical treatment, which may be subject to fees and/or support service charges.

When France SURGERY provides details regarding a healthcare professional's fees on its Website, this information is provided for convenience and as a guideline only. In no event does France SURGERY guarantee the accuracy of such information. The final price of the care service may vary depending on the type of care or medical service actually provided, in accordance with the healthcare professional's applicable care agreements. France SURGERY informs the Patient of the cost of this procedure or care.

IN-PERSON CONSULTATIONS OR REMOTE PREVENTIVE CONSULTATIONS ARE NOT EMERGENCY SERVICES. IN CASE OF EMERGENCY, THE USER MUST CALL 15 OR 112 OR GO TO AN EMERGENCY SERVICE.

2. DEFINITIONS

The definitions associated with these Terms of Use are as follows:

- "Iris Subscriber" refers to (i) any individual healthcare professional practicing independently, (ii) any private legal entity grouping healthcare professionals for the practice of their profession, and (iii) any public legal entity grouping healthcare professionals for the practice of their profession, benefiting from an Iris subscription.
- "Healthcare Professional" refers to professionals working in the healthcare sector who are accessible through the Iris Platform.
- "User Account" refers to the personal, private space of the User, enabling them to use the Services through their Login Credentials.
- "User Data" refers to (a) the data of the User and their Relatives (including Personal Data) (i) mentioned by the User on their User Account, (ii) shared by the User with a Healthcare Professional in any format, (iii) processed by France Surgery to provide the Services, and/or (b) any document of any nature uploaded, shared, collected, or posted by a User on the Iris Platform.

“Personal Data” refers to any information relating to an identified or identifiable individual as defined by the General Data Protection Regulation (GDPR).

“Health-related Personal Data” refers to any Personal Data collected by a Healthcare Professional during activities related to prevention, diagnosis, treatment, or social and medico-social follow-up, particularly in connection with the use of the Services.

“Login Credentials” refers to the personal login identifier associated with a User Account, as well as any confidential code or complex password provided to the User by Iris and subsequently modified by the User to log in and access the Services.

“Iris Platform” refers to the entire desktop software accessible online via the website www.Iris-prevention.fr, as well as its graphical, audio, visual, software, and textual components, enabling the User to use services such as (i) remote preventive consultations; (ii) Second Medical Opinion; (iii) preventive care pathways and/or (iv) hospitalization support.

“Healthcare Professional” refers to healthcare professions as defined in Part Four “Healthcare Professions” of the French Public Health Code.

“Intellectual Property” refers to (i) all intellectual property rights, regardless of their nature and form, that may exist or benefit from protection worldwide, including works of the mind, copyright and related rights, designs, models, software, and source code, trademarks, trade names and logos, domain names, and other distinctive signs, databases, as well as inventions, patents, and know-how, whether registered or not, along with updates, improvements, modifications.

the configurations, extensions, and derivative works of any or all of these elements, and (ii) personality rights, the right to privacy, and image rights.

“Electronic Signature” refers to an electronic process, including clicking on a digital acceptance button, attached to or logically associated with an electronic document, allowing a person to consent to the content of the concerned electronic document.

“User” refers to any individual who (i) has a User Account on the Iris Platform and accesses the Services offered by Iris through the Website; (ii) any Visitor to the Website.

3. CONDITIONS FOR ACCESSING THE SERVICES

3.1 Any User creating a User Account to access the online health prevention services offered by France SURGERY agrees to comply with these TOU without reservation. The User expressly accepts the TOU, without restriction or reservation, when creating their User Account. Creating a User Account implies the full and complete adherence of the User to the Contract.

3.2 If the User disagrees with any or all parts of the TOU, they must not use the Services. The TOU are applicable from the moment they are accepted by the User for an indefinite period until the Contract is terminated for Users with a User Account.

CAPACITY: The use of the Services is reserved for individual Users over the age of eighteen (18) who are capable of entering into obligations in accordance with French and European law.

4. CREATION OF A USER ACCOUNT

To benefit from the Services of France SURGERY, the User must create a...

User Account online. When creating their User Account, the User agrees to provide accurate and complete information about their identity as requested in the online form. Specifically, they agree not to create a false identity that could mislead France SURGERY, healthcare professionals, or third parties, and not to impersonate another person. The User also agrees to immediately update any changes to the information they provided during their first login to their User Account. Given the nature of the Services provided, France SURGERY reserves the right to verify and/or have a specialized third-party provider verify the User's identity, particularly by requesting a copy of their identification card.

After accepting the TOU and creating their User Account, the User will receive a confirmation email at the address they provided. It is the User's responsibility to ensure that the email address provided is correct at the time of account creation. If the User provides false, inaccurate, outdated, incomplete, or misleading information, France SURGERY may, immediately and without notice or compensation, suspend access to the User Account and deny the User temporary or permanent access to all or part of the Services.

Relatives' Accounts: The User can use their Account to schedule appointments for themselves or for a Relative. The User acknowledges having received authorization from this Relative to use their Personal Data and to enter it on the Iris Platform. The User agrees to provide, when creating the Relative's account or scheduling an appointment online, the Relative's phone number and email address in order for the said Relative to receive SMS/email communications related to the requested medical service, as well as any Documents related to their care that the healthcare professional may wish to send them.

In the event of being unable to provide the contact details of their Relative, the User acknowledges having obtained prior consent from their Relative to receive, on their behalf, the information and documents related to their appointment.

5. TECHNICAL SPECIFICATIONS FOR ACCESSING THE SERVICES

The User Account includes, in particular, the Login Credentials provided by France SURGERY. The User agrees to keep these credentials confidential and not to disclose them in any form. If any of the User's identification elements are lost or stolen, the User must immediately inform France SURGERY, which will then cancel and/or immediately update the affected Login Credential. The User is solely responsible for the use of their Login Credentials, especially if they have pre-registered them on a device, allowing automatic connection to the Services.

Any access to the Services, use of the Services, or transmission of data from the User Account will be considered to have been made by the User. In this regard, the User must ensure that they log out of the Services after each session, especially when accessing the Services from a public computer. Any loss, misappropriation, or unauthorized use of a User's Login Credentials and the resulting consequences are the sole responsibility of the User.

In all the cases mentioned above, the User is required to notify France SURGERY without delay via email, specifying their Login Credentials, first and last name to the following address:

carine@iris-prevention.fr, so that France SURGERY can proceed with resetting the User Account.

6. SMS AND EMAILS ADDRESSED TO THE USER

6.1 By making a request for online support, the User requests and therefore authorizes the Health and France Surgery professional, via Iris, to send him SMS and emails (i) confirming, canceling or recalling an appointment; (ii) information on the sending of documents; (iii) information on renewal reminders and (iii) any type of information relating to the appointments he has made, in particular on the Iris Platform.

6.2 In addition, the User acknowledges and consents that any health professional as well as the France Surgery coordinators, send him SMS or emails via Iris concerning his organization.

6.3 These SMS/emails are sent by France SURGERY on behalf of the health professional with whom the User has made an appointment via the Iris Platform or by other means, independent of France SURGERY. France SURGERY declines all responsibility in the event of non-receipt of an SMS or email for technical reasons beyond its control.

6.4 France SURGERY and the health professional disclaim all responsibility in the event of an error in the entry of contact information by the User making it impossible to send any SMS or email necessary for the proper functioning and proper administration of the Service.

7. OBLIGATIONS, RESPONSIBILITIES AND GUARANTEES OF FRANCE SURGERY

France SURGERY puts in place the means and measures necessary for the proper functioning and maintenance of the continuity and quality of the Services. The User acknowledges that the role of France SURGERY is limited to that of a simple intermediary and technical service provider.

The User acknowledges that France SURGERY cannot be held responsible for an interruption of Services or a delay in execution beyond its control and, in particular, that the provision of the Services depends on the reliability, availability and continuity of connections of a certain number of third parties (operators of the telecommunications network, the public Internet, the User's Equipment, etc.) as well as the accuracy and integrity of the User Data. France SURGERY may be required to suspend the Services for maintenance purposes scheduled by France SURGERY one of its subcontractors or in the event of a technical imperative (emergency maintenance). It is understood between the Parties that France SURGERY and the health professional can under no circumstances be held responsible for repairing any indirect damage suffered by Users during the use of the Services. In addition, France SURGERY liability cannot be sought for acts (i) resulting from an act or negligence of the User or (ii) and which do not comply with the applicable regulations and/or the Contract. France SURGERY declines all responsibility in the event of a dispute, whatever the cause, between a User and a health professional. France SURGERY can under no circumstances be held responsible (i) for the non-performance or improper execution of an act or care by a health professional or a health institution (ii) the content of a Prescription or a Medical Document and/or (iii) the side effects felt by a User following a medical care or service operated by France SURGERY.

8. GENERAL OBLIGATIONS OF THE USER

8.1 The User undertakes to: (i) respect the terms of the Contract; (ii) to make available to France SURGERY, without limitation, all the supporting documents to certify the User Data;

(iii) communicate to France SURGERY, within the agreed time, all the information necessary for the provision of the Services and update the User Data in writing. The User is solely responsible for the consequences related to a defect or delay in updating said Data; (iv) verify that the Equipment necessary for the use of the Services and used comply with the technical requirements that have been communicated to him; The supply, installation and maintenance of the Equipment as well as the costs of electronic communications (such as telephone costs and Internet access costs) resulting from their use are the sole responsibility of the User. It is the User's responsibility to inform himself of the price of use of said Equipment and services from the operators concerned; (v) protect himself against the risks of loss or hacking of data, files and programs by using regularly updated antivirus software packages; (vi) restrict access and observe the greatest confidentiality regarding the modes of access to the Services, whatever they are, and in general, secure these access modes in order to prevent unauthorized use of the Services; (vii) use the Services in compliance with the laws and regulations applicable to the Contract; (viii) do not use The Services in a way that would be likely to damage the reputation of France SURGERY and/or health professionals; (ix) that the User Data it communicates in the context of the use of the Services does not prejudice the rights of third parties and to be authorized to disseminate them.

The user uses the Iris Platform and the Services only for private purposes. The Services may not be used for commercial or for-profit purposes.

8.2 In also, the User is responsible (i) for the use he makes or that his Relatives make of the Services, (ii) the User Data he enters on the Platform and (iii) the use of these by France SURGERY and/or health professionals;

(b) indemnifies France SURGERY, its representatives for all costs (including fees, costs and legal expenses) and damages and interests related to claims and legal actions relating to (i) the use of the Services by the User and/or his Relatives in an illegal, immoral, fraudulent, or non-contractual manner; (ii) the User Data that it fills in and their use by France SURGERY and/or health professionals and their teams; (iii) the violation of Intellectual Property rights of Iris as well as any third party, due to the use of the Services by the User.

9. REMOTE PREVENTION MAINTENANCE SERVICE

In order to benefit from a quality remote prevention maintenance service, the User must have at least the following equipment: (i) a sufficiently recent smartphone or computer with a camera with a satisfactory resolution and (ii) an Internet connection (in 4G) with a sufficient speed. If this is not the case, the health professional may terminate the remote prevention interview and, if he deems it appropriate, charge the User of costs related to the acts already performed. France SURGERY is only a coordinator, between the User and the health professional, allowing to carry out a remote prevention interview by video transmission, sending documents electronically and online payment.

When making an appointment, France SURGERY cannot be held responsible for delays or cancellations of health professionals. The User undertakes to use the Service under conditions allowing him to ensure the confidentiality and smooth running of exchanges with the Health professional.

Health professionals carry out the remote prevention interview in complete independence, according to their ethical and legal obligations. The service takes place under the exclusive responsibility of the User and the health professional.

The User undertakes not to record, copy or disseminate any content or extract of content in connection with the Remote Prevention Interview, regardless of the means, medium, process or purpose. The Remote Prevention Interview is not registered by the Health professional, France SURGERY or any other third party. However, the Remote Prevention Interview Service allows the health professional, if necessary and for the sole purpose of facilitating the establishment of a diagnosis or completing the patient's medical record, to capture an image of the Remote Prevention Interview. The User is informed that any violation of the right to the image, respect for privacy or professional and medical secrecy may be subject to sanctions, including criminal sanctions. In the event of a malfunction of any kind during the Remote Prevention Interview, the User must immediately inform the Health Professional. The User who abusively interrupts the Remote Prevention Interview is responsible for the health professional. At the end of the Remote Prevention Interview, the health professional confirms the amount to be paid by the User. Depending on the situation, the health professional may decide to revise downwards or not to charge the Remote Prevention Interview.

The User will then be able to receive on his User Account the corresponding fee note, and if applicable, the report of the Remote Prevention Interview and/or a prescription, by going to the "my documents" section. The establishment of a prescription is at the discretion of the health professional.

Incivilities, verbal or written, against health professionals may be prosecuted and the suspension or even termination of the User account by France SURGERY.

10. SERVICE OF SECOND MEDICAL NOTICE

By accessing his User Account, the user can request a Second Medical Opinion: - add Documents in the "My documents" tab for himself and/or the Relatives for whom he requests a Second Medical Opinion Online via the France SURGERY Service for which he has received authorization to manage their Documents. - access, consult and download the Documents and electronic Prescriptions shared by Health professionals - The User remains the sole owner of the Documents he adds in the Document Management Service and the Documents that are shared with him by his health professionals. He has the option to add, view, rename, download and delete these Documents at any time. A Document deleted by the User is permanently deleted, both on the User's account and on the account of health professionals hosted on the France SURGERY Platform, with whom the Document may have been shared by the User.

The health professional retains the possibility of making a copy of the Document during the period of time when there is access.

In the event that the User wishes to ensure that the Document is deleted by the health professional, he must make an express request for deletion of the Document to France SURGERY.

In addition, the User remains solely responsible for the legality of the content of the Documents that he adds in the Document Management Service or that he shares with health professionals or with other people. France SURGERY is in no way responsible for the content or accuracy of the Documents shared by health professionals with the User. The transmission by the User of Documents containing Personal Health Data to any third party is under his sole responsibility.

11. COORDINATION SERVICE PREVENTION / HOSPITALIZATION PATH

The user confirms that he has requested the service to the care path operated by "France SURGERY" for an assistance service for his hospitalization/coordination prevention course, via the Iris platform.

Thus, the user authorizes the France SURGERY service to transmit any medical information concerning him and allowing the realization of this service to any member of his health professional network.

The user also authorizes the France SURGERY care pathway coordination service to transmit, if necessary, for translation, any medical information contained in his medical record anonymously to a sworn specialized translator.

The user understands that the organization of his prevention/hospitalization assessment will be based solely on the information communicated on the Iris platform by his doctor and/or himself.

The user understands and accepts that neither the France SURGERY service, nor the health professional(s) who are part of his medical network, to whom his file may be entrusted, can be held responsible for the inaccuracy and non-exhaustiveness of the information transmitted by his doctor and/or himself as well as for any errors in the transmission of said information.

Once the conclusions of the assessment/hospitalization have been transmitted by a health professional, the France SURGERY service cannot be held responsible for the possible continuation of the medical treatment recommended by said medical professional.

On his behalf, those of his heirs, ascendants and descendants, personal representatives, directors, successors, agents and assignees, the user fully releases the France SURGERY service and its professional health network from any possible claim, complaint, legal action or compensation, costs, expenses and attorney's fees, arising from or in connection with the hospitalization/prevention course issued and/or the recommended recommendations.

This authorization takes effect on the day of the creation of my file on the Iris platform.

12. INTELLECTUAL PROPERTY

The Services of France SURGERY and all the elements that compose them are, unless otherwise mentioned, the exclusive property of France SURGERY.

No provision of the Contract can be interpreted as an assignment of Intellectual Property rights.

France SURGERY grants the User, for the duration of the Contract, a personal, non-exclusive and non-transferable and non-transferable right of use of the Iris Platform. The User undertakes not to (i) attempt to access or copy the source codes of the Iris Platform; (ii) use the Iris Platform for purposes other than those of using the Services; (iii) create copies of the Iris Platform;

(iv) reproduce, correct, extract, modify, translate into any language or any language, reuse, arrange, adapt, decompile (except and only to the extent expressly permitted by applicable law), or incorporate the Iris Platform into other software or create derivative works based on the Iris Platform regardless of the means and medium; (v) resell, rent, or commercially exploit the Iris Platform, or assign/concend the Iris Platform to a third party; (vi) make penetration tests or attempt to obtain a denial of service on the Services. The User acknowledges that any violation of this article constitutes an act of infringement that is civilly and criminally punishable. The User understands and consents that the Iris Platform is not intended to meet any particular requirement on his part and is provided "as is". Iris excludes, to the extent permitted by law, any warranty of any kind whatsoever.

13. SUSPENSION

13.1 - Suspension with notice In the event of (i) non-compliance by the User with the stipulations of the Contract or (ii) behavior of the User that may harm France Surgery and/or a professional or health institutions and/or other Users, or (iii) violation of the laws and regulations in force, France Surgery will give notice to the User upon notification sent by any means, to remedy the fault(s) imputed within seven (7) days following the date of notification before automatically suspending or limiting the User's access to all or part of the Services.

13.2 - Suspension without notice in the event of serious danger - perceived or proven - for (i) a professional or a health institution and/or a Patient, or (ii) the reputation of France Surgery or a health professional,

France Surgery may suspend or limit the User's access to all or part of the Services without notice. The User will be informed of this suspension by any means. France Surgery will unilaterally decide on the follow-up to the suspension of the Contract.

13.3 - Consequences of suspension During the period of suspension of access to the Services, the User may exercise his rights over his Personal Data, in accordance with the article "User Rights" of the Personal Data Protection Policy. France Surgery will not be responsible for damages resulting from the suspension of the Services under this article.

14. TERMINATION

14.1 Termination by France Surgery

The User acknowledges being informed that all or part of the Services may be terminated by France Surgery, without the latter having to justify its decision and without compensation.

In this context, the User is informed that France Surgery must respect one (1) month's notice. In addition, in the event of serious misconduct by the User, such as the use of one or more Services (a) contrary to the stipulations of the Contract, (b) contrary to laws and regulations (c), likely to damage the reputation of France Surgery

Or a professional / health institution, or the physical or mental integrity of another User, France Surgery may terminate, by any means, all or part of the Services with seven (7) days' notice from the effective suspension and without compensation.

14.2 Termination by the User. The User may at any time terminate the Agreement by requesting the deletion of his User Account at bilan@iris-prevention.fr or by logging into his User Account ("My account" section).

In accordance with his right of portability of Personal Data. The User acknowledges having all the rights and/or authorizations necessary to be able to recover the aforementioned data.

14.3 Consequences of termination Any termination of the Contract by France Surgery or the User automatically results in (i) the termination of the right of access to the Services by the User, (ii) the deletion or anonymization of all User Data as well as all Medical Documents, contained in the User Account. France Surgery is nevertheless authorized to keep a copy of the Confidential Information for any purposes imposed by applicable law.

15. PROTECTION OF PERSONAL DATA

France Surgery's Personal Data Protection Policy describes the respective roles and obligations of the User and France Surgery regarding the processing of Personal Data in the context of the execution of the Services. By accepting these T&Cs, the User and France Surgery undertake to respect the terms and conditions of the said personal data protection policy.

16. Confidentiality

Each Party guarantees to ensure the strict confidentiality of the Confidential Information shared during the pre-contractual and post-contractual phases, as well as during the execution of the Contract. As such, each Party undertakes to (i) use the Confidential Information only for the sole purpose of the execution of the Contract and to the strict extent necessary;

(ii) take all precautionary and protective measures necessary to preserve the confidentiality of the other Party's Confidential Information and to prevent unauthorized access and, at a minimum, offer them the same degree of protection as its own Confidential Information; (iii) never to disclose or reproduce the other Party's Confidential Information to persons other than its members, employees, attendants (a) who will have access to this Confidential Information to fulfill the obligations to which the Party in question is bound by the Agreement, or (b) who are able to know at the Title of the Contract. These members, employees, attendants may only have access to it themselves under the conditions (i) and (ii) above. In all cases, the Party receiving the Confidential Information guarantees compliance with this confidentiality commitment by persons with knowledge of the Confidential Information, whether in particular its employees or subcontractors. The obligation of confidentiality will remain valid for a period of five (5) years after the expiration, for whatever reason, of the Contract. Notwithstanding the foregoing, each Party may disclose Confidential Information without the consent of the other part, to the strict extent that such disclosure is required by a competent authority or in application of a legal or ethical obligation.

17. FORCE MAJEURE

Situations whose constituent elements are characterized within the meaning of Article 1218 of the Civil Code and the case law of the Court of Cassation shall be considered by the Parties as cases of force majeure. In the event of such an event, the victim party must immediately inform the other Party in writing. The case of force majeure suspends the obligations of the Party concerned during the time that the force majeure will play. Nevertheless, the Parties will endeavour to minimize the consequences as far as possible. If a case of force majeure makes one of the Parties unable to fulfill its contractual obligations under the Contract for more than thirty (30) consecutive days, one or the other of the Parties may terminate the Contract after sending a registered letter with acknowledgment of receipt. The Parties will then no longer be obliged to comply with their obligations, with the exception of those resulting from the Articles "Intellectual Property", "Confidentiality", "Protection of Personal Data" and "Prosponsibility" hereof, without any compensation or penalty, for any reason whatsoever, being due on either side.

18. Various

18.1 Waiver: the fact, for either Party, of not availing itself of one or more stipulations of the Contract may under no circumstances imply the waiver by that Party to make use of it later.

18.2 Partial nullity: in the event that certain stipulations of the Contract are unenforceable for any reason whatsoever, including due to an applicable law or regulation, France Surgery and the User will remain bound by the other stipulations of the Contract and will endeavour to remedy the unenforceable clauses in the same spirit as the one who presided over at the conclusion.

18.3 Evidence Agreement: the Parties expressly agree that any document signed in a dematerialized manner under the Contract (i) constitutes the original of said document; (ii) has the same probative value as a writing signed by hand on paper and can validly be opposed to the Parties; (iii) is liable to be produced in court, as literal evidence, in the event of disputes. Consequently, the Parties acknowledge that any document signed in a dematerialized manner constitutes proof of the content of said document, the identity of the signatory and his consent to the obligations and consequences of facts and law that derive from the document signed in a dematerialized manner. The termination or expiration of the Contract cannot call into question the probative force of documents signed electronically before the date of its termination/expiration.

18.4 Means of proof: In order to establish the damage (proven or presumed) to the reputation of France Surgery and / or health professionals or to the physical or mental integrity of the Patients, France Surgery may use messages sent to France Surgery that it will have previously anonymized in order to guarantee the confidentiality of their exchanges, as long as the content of the messages does not allow them to be identified.

18.5 Feedback: If a User provides comments to France Surgery regarding the functionality or performance of the Services (including the identification of errors or improvements), the User undertakes to grant France Surgery without restriction or payment, any right, title and interest in them.

18.6 Rights and permissions: Each Party declares to have the rights and permissions necessary to enter into the Contract and perform the obligations mentioned therein.

18.7 Independence: It is perfectly clear between the Parties that each of them intervenes herein as an independent contractor and that neither Party may be considered as the employee, agent, distributor, principal or representative of the other Party.

18.8 Modifications to the T&Cs: The User acknowledges and accepts that the authentic version of the T&Cs is the one that is online when he accesses the Site and/or uses the Services. The User is therefore required to refer to the online version of the T&Cs on the date of its access and use concerned. France Surgery is free to modify these T&Cs at any time, in particular to take into account any modification to the Site, the Platform and/or its Services as well as any legal, regulatory, jurisprudential and/or technical evolution or constraint. In the event of significant change(s) made to the Site, the Platform, the Services and/or their conditions and terms of access and use, France Surgery will inform the User by any means and with reasonable notice.

18.9 Technical support and assistance: France Surgery provides the User with a telephone assistance service accessible at the following number: 09 53 02 03 09. The opening hours of the telephone assistance service are as follows: 9 a.m. to 6 p.m. non-holidays on working days. These hours may vary in exceptional circumstances.

18.10 Complaints management: The User can send a complaint related to the use of the Services to the following address: France Surgery, 11 rue Saint Expedit 31500 Toulouse

18.11 ANTI-CORRUPTION: In the context of the activities associated with the Contract or in connection with the relationship between France Surgery and the User, France Surgery and the User undertake to comply with French and European legal and regulatory provisions, as well as internationally recognized principles relating to the fight against corruption.

19. LEGAL NOTICE

France Surgery Services are operated by France Surgery, a simplified joint stock company registered with the RCS of Toulouse under number 515151837 whose registered office is located at 11, rue Saint Expedit 31500 Toulouse. Director of publication: Mrs. Carine Briat-Hilaire, President. The hosts of the Services are HDS (Health Data Hosting) certified, in accordance with Article L1111-8 of the Public Health Code and Decree No. 2018-137 of February 26, 2018 on the hosting of personal health data. Their names can be given on request to France Surgery. The certification for which these hosts benefits is an HDS (Appreted Health Data Hosting) certification validated by the Ministry of Health (and its agency in charge of information systems, the Digital Health Agency) and the National Commission for Informatics and Liberties (CNIL). Health data may not be sold or transferred to third parties for commercial or advertising purposes.

20. AMICABLE SETTLEMENT - APPLICABLE LAW AND ATTRIBUTION OF JURISDICTION

The User is informed that by browsing the Site or using the Services of France Surgery, the User submits to French law. Before any litigation action, France Surgery and the User will seek, in good faith, to settle amicably their disputes relating to the validity, interpretation, execution or non-performance, interruption, termination or denunciation of these Terms of Use, for any reason and on any basis whatsoever. France Surgery and the User will have to meet to confront their points of view and make all useful observations to allow them to find a solution to the conflict between them. France Surgery and the User will strive to reach an amicable agreement within thirty (30) days of notification by one of them of the need for an amicable agreement, by registered letter with acknowledgment of receipt. Except to preserve their right of action or to avoid imminent damage, no legal action may be admissible before this amicable dispute settlement procedure has been fully complied with. Any difficulties relating to the validity, application or interpretation of the Contract will be submitted, in the absence of an amicable agreement, to the jurisdiction of the competent Courts in accordance with French law.

